

Court No. - 3

Case :- WRIT - C No. - 6246 of 2006

Petitioner :- M/S R.D. Ice & Cold Storage (P) Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, S.C.

Hon'ble Krishna Murari, J.

Hon'ble Amar Singh Chauhan, J.

List again in the next cause list showing the name of Sri Baleshwar Chaturvedi also as learned counsel appearing for the respondent.

Office is also directed to place the record of the decided connected cases before the Court on the next date.

Order Date :- 9.9.2015

AK

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, S.C.

Hon'ble Krishna Murari, J.

Hon'ble Amar Singh Chauhan, J.

Passed over on the illness slip of Shri Baleshwar Chaturvedi, learned counsel for the respondents.

Order Date :- 1.10.2015

Ishrat

Court No. - 3

Case :- WRIT - C No. - 6246 of 2006

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, Baleshwar Chaturvedi, S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

On the request of learned counsel appearing on behalf of the petitioner, list this matter on July 25, 2025.

Order Date :- 18.7.2025

Kuldeep

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)



2025:AHC:164042-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 6246 of 2006

M/S R.D. Ice And Cold Storage P Ltd.

.....Petitioner(s)

Versus

Dakshinanchal Vidyut Vitran Nigam Limited And
Others

.....Respondent(s)

Counsel for Petitioner(s) : Bidhan Chandra Rai
Counsel for Respondent(s) : W.H. Khan, Baleshwar Chaturvedi,
S.C.

With

WRIT - C No. - 55908 of 2007

R.D. Ice And Cold Storage Pvt. Ltd. And Anr.

.....Petitioner(s)

Versus

Dakshinanchal Vidyut Vitran Nigam Ltd. And Ors.

.....Respondent(s)

Counsel for Petitioner(s) : B.C. Rai
Counsel for Respondent(s) : C.S.C., Rajesh Kumar Tripathi, Rajesh
Tripathi

Court No. - 3

**HON'BLE SHEKHAR B. SARAF, J.
HON'BLE PRAVEEN KUMAR GIRI, J.**

1. The prayer in the Writ - C No.6246 of 2006 is as follows :

"a) a writ, order or direction in the nature of writ of certiorari quashing the revised assessment order/ bill dated 16.12.2005 and consequential demand notice dated 20.12.2005 (Annexure No.10 & 11 to the writ petition) issued by the respondent No.3 in purported exercise of power under Section 135 Electricity Act, 2003 read with clause 6.8 (c) of Electricity Supply Code, 2005;

b) Issue writ, order direction in the nature of mandamus declaring Clause 8.2 (iv) of Electricity Supply Code, 2005 as ultra vires of section 126 (6) to the Electricity Act, 2003;

c) To issue a writ, order or direction in the nature of writ of mandamus restraining the

respondents from recovering sum in question from the petitioner in any manner including by coercive process;"

2. The prayer in the Writ-C No.55908 of 2007 is as follows:

"a) a writ, order or direction in the nature of writ of certiorari quashing the revised ex-parte assessment order dated 3.9.2007 and revised assessment bill dated 1.9.2007 (Annexure No.12 to the writ petition) issued by the Respondent No.2;

b) issue a writ, order or direction in the nature of writ of mandamus restraining the Respondents from disconnecting power supply and recovering sum in question from the petitioner in any manner including by coercive process;

c) issue a writ, order or direction in the nature of writ of mandamus declaring that designation of the Executive Engineers of Respondent No.1 by the State Government vide letter dated 27.6.2006 is ultra vires to Section 126 of the Act of 2003;"

3. We have heard learned counsel appearing for the parties and perused the material on record.

4. It is to be noted that the revised assessment order dated 16.12.2005, consequential demand notice dated 20.12.2005 (Writ - C No.6246 of 2006) and the revised ex-parte assessment order dated 3.9.2007 and revised assessment bill dated 1.9.2007 (Writ-C No.55908 of 2007) have been passed.

5. From perusal of record it appears that in the first writ petition, the Executive Engineer (Revenue) has passed the order. Learned counsel for petitioners submits that only Executive Engineer (Distribution) has the power to pass assessment order. In our view the power was not with the Executive Engineer (Revenue) to pass the assessment bill and the demand notice and the power lies with the Executive Engineer (Distribution). Accordingly, the writ petition is allowed and the impugned order and demand notice are quashed and set aside.

6. The challenge in the second writ petition is with regard to the revised ex-parte assessment order passed by the Executive Engineer (Distribution). With regard to the revised ex-parte assessment order passed in 2007, the writ petition is **allowed** granting the liberty to the writ

petitioner to file appeal against the said revised assessment order and revised assessment bill within a period of four weeks from date without payment of any pre deposit as substantial amount has already been deposited by the petitioner. The authorities are directed to grant an opportunity of hearing and thereafter passed a reasoned order in accordance with law within a period of eight weeks from the date of filing of the said appeal. The other prayers in the aforesaid writ petitions have not been pressed by the writ petitioners.

(Praveen Kumar Giri,J.) (Shekhar B. Saraf,J.)

September 15, 2025

Md Faisal